Chemeketa Community College

GENERAL TERMS AND CONDITIONS
FOR THE PURCHASE OF SUPPLIES AND/OR SERVICES

THE FOLLOWING GENERAL TERMS AND CONDITIONS SHALL APPLY TO ALL PURCHASES BY OR ON BEHALF OF THE COLLEGE UNLESS SPECIFICALLY PROVIDED OTHERWISE ON THE FRONT OF THIS PURCHASE ORDER:

1. DEFINITIONS

"Contract" means the entire written agreement between the parties including, but not limited to: the Request for Quotation; the Invitation to Bid or Request for Proposal and its specifications, terms and conditions, solicitation instructions, solicitation addenda and contract amendments, if any; the Purchase Order or price agreement document and its insurance and supplementary contract conditions.

"Contractor" means a person or organization with which the College has contracted for the purchase of goods and/or services; the terms "Contractor" and "Seller" as used in the Uniform Commercial Code (ORS chapter 72) are synonymous; "ORS" means the Oregon Revised Statutes.

"College" means Chemeketa Community College, Chemeketa Community College District or Chemeketa Community College Service District established under ORS chapter 341.

2. STANDARD AND SUPPLEMENTARY CONTRACT TERMS AND CONDITIONS

The terms and conditions contained herein are standard to Chemeketa Community College contracts for the purchase of goods and/or services. There may also be special terms and conditions in an Invitation to Bid or Request for Proposal, Request for Quotation, or other similar form of Solicitation Document issued to invite Offers, which apply only to this Contract.

3. TAX EXEMPTION

Chemeketa Community College's "Registration for Tax-Free Transactions Under Chapter 32 of the Internal Revenue Code" is ID #93-710039F.

4. ACCEPTANCE OF CONTRACT

This order is the College's offer to purchase the goods and/or services described on the Purchase Order. The College's placement of this order is expressly conditioned upon Contractor's acceptance of all the terms and conditions of purchase contained on or attached to this Purchase Order.

5. HOLD HARMLESS

The Contractor shall indemnify, defend, and hold harmless Chemeketa Community College officers, agents, and employees from any claims, actions, liability or cost, including attorneys' fees and/or cost of defense arising out of or in any way relating to the work performed under this agreement, and arising from the sole or joint negligence of the Contractor.

6. BREACH OF CONTRACT

In the event of a breach by the Contractor of any of the provisions of this Contract, the College reserves the right to cancel and terminate this Contract forthwith upon giving oral or written notice to the Contractor. Contractor shall be liable for any and all damages suffered by the College as a result of Contractor's breach of contract including, but not limited to, incidental and consequential damages, as provided in ORS 72.7110 to 72.7170; in the event of repeated breach of public and/or private contracts, Contractor shall be subject to disqualification on College contracts, as provided in ORS Public Contracting Code (279A, 279B, and 279C, and OAR as applicable).

7. TERMINATION

This Contract may be terminated by mutual consent of both parties or by the College at its discretion. The College may cancel an order for goods and/or services at any time with written notice to Contractor, stating the extent and effective date of termination. Upon receipt of this written notice, Contractor shall stop performance under this Contract as directed by the College. If this Contract is so terminated, Contractor shall be paid in accordance with the terms of the Contract for goods and/or services delivered and accepted if Contractor's damages arising out of return of the goods cannot be mitigated by the resale as provided in the Uniform Commercial Code (ORS 72.7060).

8. AMENDMENTS

No agreement or understanding to modify this Contract shall be binding upon the College unless in writing and signed by the College's authorized agent. All specifications, drawings, and data submitted to the Contractor with this order are hereby incorporated and made a part hereof. No alteration in any of the terms and conditions will be effective without the prior written consent of the College's Procurement Services office.

9. UNIFORM COMMERCIAL CODE

All applicable portions of the Uniform Commercial Code-Sales (Oregon Revised Statute 72 et al), shall govern contracts with Chemeketa Community College.

10. DELIVERY

All goods are to be priced and shipped "*prepaid, F.O.B. destination"* (Contractor pays freight charges, Contractor bears freight charges, Contractor owns goods in transit, Contractor files any claims), unless otherwise specified. Where specific authorization is granted to ship goods F.O.B. shipping point, Contractor agrees to prepay all shipping charges, route cheapest common carrier, insure goods for the entire value of replacement cost, and to bill the College as a separate item on the invoice for said charges. Each invoice for shipping shall include the original, or a copy of the bill, indicating that the payment for shipping has been made.

TIME IS OF THE ESSENCE in this Contract. If completed deliveries are not made at the time agreed in the Purchase Order, the College reserves the right to cancel the Purchase Order and/or purchase elsewhere and hold Contractor responsible for damages. If delivery dates cannot be met, Contractor agrees to advise the College, in writing, of the earliest possible shipping date for acceptance by the College. Contractor assumes responsibility of delay notwithstanding the cause.

11. RISK OF LOSS

Regardless of F.O.B. point, Contractor agrees to bear all risk of loss, injury, or destruction of goods and materials ordered herein which may for any reason occur prior to acceptance by the College. No such loss, injury or destruction shall release Contractor from any obligations hereunder.

12. INSPECTION

Goods and materials must be properly packaged. Damaged goods and materials will not be accepted, or if the damage is not readily apparent

at the time of delivery, the goods shall be returned at no cost to the College. The College reserves the right to inspect the goods at a reasonable time subsequent to delivery where circumstances or conditions prevent effective inspection of the goods at the time of delivery. If Contractor is unable or refuses to cure any defects within a time deemed reasonable by the College, the College may reject the goods and cancel the Contract in whole or in part. Nothing in this paragraph shall in any way affect or limit the College's rights as buyer, including the rights and remedies relating to rejection under ORS 72.6020 and revocation of acceptance under ORS 72.6080.

13. PATENTS, COPYRIGHTS, TRADEMARKS, OR FRANCHISE INFRINGEMENTS

If an article sold and delivered to the College hereunder shall be protected by any applicable patent, copyright, trademark, or franchise the Contractor agrees to indemnify and save harmless the College, from and against any and all suits, claims, judgments, and costs instituted or recovered against it by any person whomsoever on account of the use or sale of such articles by the College in violation or right under such patent or copyright.

14. NON-WAIVER OF RIGHTS

No failure of either party to exercise any power given to it hereunder or to insist upon strict compliance by the other party with its obligations hereunder, and no custom or practice of the parties at variance with the terms hereof, nor any payment under this agreement shall constitute a waiver of either party's right to demand exact compliance with the terms hereof.

15. SEVERABILITY

If any provision of this Contract is declared by a court of competent jurisdiction to be illegal or in conflict with the law, the validity of the remaining terms and provisions shall not be affected, and the rights and obligations of the parties shall be construed and enforced as if the Contract did not contain the particular provision held invalid.

16. MATERIAL SAFETY DATA SHEETS

Proper Material Safety Data Sheets, in compliance with Occupational Safety and Health Administration's (OSHA's) Hazard Communication Standard, must be provided by the Contractor to the College at the time of purchase.

17. COMPLIANCE WITH LAWS

The Contractor certifies that in performing this contract it will comply with all applicable provisions of the federal, state and local laws, regulations, rules, orders, codes, and ordinances applicable to the provision of goods and/or services under this Contract, including, without limitation, the provisions of ORS 279C.505, 279C.515, and 279B.235, as set forth below and the provisions of: (i) Title VI of the Civil Rights Act of 1964; (ii) Section V of the Rehabilitation Act of 1973; (iii) the Americans with Disabilities Act of 1990 (Pub L No. 101-336), ORS 659.800 et al, and all amendments of regulations and administrative rules established pursuant to those laws; and (iv) all other applicable requirements of federal and state civil rights and rehabilitation statutes, rules, and regulations.

18. PAYMENTS REQUIRED BY ORS 279B.220, 279C.230, 297C.505, and 279C530

For all goods and/or services provided under this Contract, Contractor shall: (1) pay promptly, as due, all persons supplying labor and/or material; (ii) pay all contributions or amounts due the Industrial Accident Fund from the Contractor or any subcontractor; (iii) not permit any lien or claim to be filed or prosecuted against the state, county, school district, municipality, municipal corporation or subdivision thereof; (iv) pay to the Oregon Department of Revenue all sums withheld from employees pursuant to ORS 316.167; (v) promptly, as due, make payment to any person, co-partnership, association or corporation furnishing medical, surgical and hospital care services or other needed care and attention, incident to sickness or injury, to the employees of the contractor, of all sums that the contractor agrees to pay for the services and all moneys and sums that the contractor collected or deducted from the wages of employees under any law, Contract or agreement for the purpose of providing or paying for the services; and (vi) provide and maintain workers' compensation coverage for its employees, officers, agents or partners, or for any subject worker and all subject employers working under the Contract are either employers that will comply with ORS 656.017 or are employers that are exempt under ORS 656.126.

19. CONDITION FOR LAWN AND LANDSCAPE MAINTENANCE CONTRACT AS REQUIRED BY ORS 279B.225

Contractor shall salvage, recycle, compost or mulch yard waste material at an approved site, if feasible and cost-effective.

20. COLLEGE PAYMENT OF CONTRACTOR CLAIMS AS REQUIRED BY ORS 279C.515

If Contractor fails, neglects, or refuses to pay promptly as due, any claim for labor or services furnished to the Contractor or any subcontractor by any person in connection with the goods provided under this Contract, the College may pay such claim and charge the amount of the payment against funds due or to become due the Contractor under this Contract. The payment of a claim by the College pursuant to ORS 279C.515 shall not relieve the Contractor or its surety, if any, from obligation with respect to any unpaid claims.

21. HOURS OF LABOR

No person shall be employed by the Contractor for more than eight hours in any one day, or 40 hours in any one week, except in cases of necessity, emergency, or where public policy absolutely requires it, and in such cases the laborer shall be paid at least time-and-a-half pay for all overtime in excess of eight hours a day and for work performed on Saturday and on any legal holiday specified in ORS 279B.020 and 279C.540.

22. SAFETY AND HEALTH REQUIREMENTS

Goods and services provided under this Contract shall comply with all federal Occupational Safety and Health Administration (OSHA) requirements and with all Oregon safety and health requirements, including those of the State Workers' Compensation Division.

23. AWARD TO FOREIGN CONTRACTOR

If Contractor is not domiciled in or registered to do business in the State of Oregon, Contractor shall promptly provide to the Oregon Department of Revenue and the Secretary of State Corporation Division all information required by those agencies relative to this Contract. The College shall withhold final payment under this Contract until Contractor has met this requirement.

24. LAWS GOVERNING

This Contract shall be governed by and construed according to the laws of the State of Oregon. Venue for any action related to this agreement shall be in the Circuit Court for the County of Marion, Oregon. Provided, however, if the claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. Contractor hereby consents to the in personam jurisdiction of said courts.

25. PREVAILING WAGE

It shall be the responsibility of the Contractor to comply, when applicable, with prevailing wage rates if the Contract is for a public work subject to Oregon Revised Statutes (ORS) 279C.800 to 279C.870, or the Davis-Bacon Act (40 U.S.C. 3141 to 3148), and to pay workers not less than the specified minimum hourly rate of wage

in accordance with ORS 279C.838, 279C.840 or U.S.C. 3141 to 3148, and to pay the higher of the applicable state or federal prevailing rate of wage to workers on public works projects, if the public works project is subject to both state and federal prevailing wage laws. Prevailing rates of wage are available electronically on the Internet from the State of Oregon Bureau of Labor and Industries' website @ appearing on the face of this Purchase Order. It shall be the responsibility of the Contractor to monitor the prevailing wage rates during the project for any increase in rates and to adjust wage rates accordingly.

26. PUBLIC WORKS BOND AS REQUIRED BY ORS 279C.830

If the Contract is for a public work, Contractor must have a public works bond filed with the State of Oregon Construction Contractors Board before starting work on the project subject to Oregon Revised Statute (ORS), 279C.830, unless exempt under ORS 279C.836(7) or (8), and Contractor must include in every subcontract, a provision requiring the subcontractor to have a public works bond filed with the Construction Contractors Board before starting work on the project, unless exempt under ORS 279C.836(7) or (8).

27. PAYMENT TERMS

Chemeketa Community College's payment terms are net 30. In the event the College is entitled to a cash discount, the period of computation shall commence on the date the entire order is delivered or upon receipt of correctly completed invoice(s), whichever is *later*. If an adjustment in payment is necessary due to damage, the cash discount period shall commence on the date final approval for payment is authorized.

28. PAYMENT

All invoices shall be addressed to Accounts Payable, Chemeketa Community College, PO Box 14007, Salem, Oregon 97309, as indicated on the front of this Purchase Order and must include Contractor's name and phone number, Purchase Order number, and clearly list quantities, item descriptions, and units of measure. All payments to the Contractor shall be remitted by mail unless previous arrangements for ACH credit/direct deposit have been made. Please contact Accounts Payable @ 503-399-5014 for information on direct deposit.

29. WARRANTIES

Unless otherwise stated, all goods shall be new and current model and shall carry full manufacturer warranties. The Contractor warrants to the College that all goods and services furnished hereunder will conform in all respects to the terms of this order, including any drawings, specifications, standards incorporated herein, materials, workmanship, and be free from such defects in design. Contractor warrants and represents that all goods and services contained herein are free and clear of all liens, claims, or encumbrances of any kind whatsoever. In addition, Contractor warrants the goods and services are suitable for and will perform in accordance with the purposes for which they were intended. Contractor agrees to accept for credit, repair, or replacement, at no charge, any items received defective by the College or proven defective during the agreed warranty period and to be responsible for ALL transportation costs for return to the Contractor, and when repaired or replaced, returned to the College. All implied and expressed warranty provisions of the Uniform Commercial Code (ORS chapter 72) are incorporated in this Contract. All warranties shall run to the College.

30. NON-DISCRIMINATION

Pursuant to the equal opportunity and affirmative action provisions of Section 202 of Executive Order 11246, Section 504 of the Rehabilitation Act of 1973, Title VI of the Civil Rights Act of 1964, the Age Discrimination Act, and the Americans with Disabilities Act, and amendments thereto to the extent the same are applicable to the manufacture and/or sale of the goods purchased hereunder, or the contracting and/or subcontracting of services or work hereunder, the http://egov.oregon.gov/BOLI/WHD/PWR/pwr_book.shtml, and shall be incorporated herein by reference. (Hard copies of the applicable Prevailing Wage Rates may also be obtained by calling 503-399-5014 and requesting a copy.) Rates shall be those in effect when the public contract was first advertised, but if not advertised, then the earliest date

Contractor agrees not to discriminate against any client, employee, or applicant for employment or for services, because of race, religion, color, sex, age, national origin, ethnic origin, sexual orientation, gender identity, marital status, citizenship status, pregnancy and related conditions, family relationship, veteran's status, disabilities, tobacco usage during work hours, whistle blowing, victim of domestic violence and genetic information in any educational programs, activities of employment, with regard to, but not limited to, the following: employment upgrading, demotion or transfer; recruitment or recruitment advertising; layoffs or termination; rates of pay or other forms of compensation; selection for training; rendition of services. It is further understood that any Contractor who is in violation of this clause may be barred forthwith from receiving awards of any Purchase Order, purchase agreement, contract, or similar acquisition instrument, from the College unless a satisfactory showing is made that discriminatory practices have terminated and that a recurrence of such acts is unlikely.

31. SUBCONTRACTING AND ASSIGNMENT

Contractor shall not assign this Contract, in whole or in part, or any right or obligation hereunder, without College's prior written approval. Contractor shall require any approved subcontractor or assignee to agree, as pertains to the portion subcontracted or assigned, to comply with all obligations specified in this Contract. Notwithstanding College's approval of a subcontractor or assignee, Contractor shall remain obligated for full performance of this Contract and College shall incur no obligation to any subcontractor or assignee. Furthermore, the provisions or monies due under this Contract shall not be assignable.

32. ATTORNEY FEES

Contractor covenants and agrees that in the event suit is instituted by the College for any default on the part of the Contractor, Contractor shall pay to the College all expenses incurred by the College in connection therewith, and reasonable attorney's fees.

33. INDEPENDENT CONTRACTOR

If Contractor is engaged as an Independent Contractor, the College will report all payments made to the Contractor, including any expenses, in accordance with Federal Internal Revenue and State of Oregon Department of Revenue regulations, and Contractor will be responsible for: (a) all applicable Federal or State taxes, and will not be eligible for any Social Security, Worker's Compensation, or Unemployment Insurance benefits except as a Self-Employed individual; (b) furnishing the College with a Request for Taxpayer Identification and Number and Certification (W9), or a Certificate of Foreign Status (W8), if a non-resident alien and exemption from federal withholding tax is claimed.

34. ACCESS TO RECORDS

The College, the Secretary of State Audits Division of the State of Oregon, the federal government, and their duly authorized representatives shall have access to the books, documents, papers, and records of the Contractor, which are directly pertinent to this specific Contract for the purpose of making audit, examination, excerpts and transcripts.

35. FORCE MAJEURE

Neither party to this Contract shall be held responsible for delay or default caused by fire, riot, acts of God and/or war, which is beyond the party's reasonable control. The College may terminate this Contract

upon written notice after determining such delay or default will reasonably prevent successful performance of this Contract.

36. COMPLIANCE WITH COLLEGE POLICIES

The College retains the right to stop any activity and/or to require dismissal from the job site of any worker whose behavior does not comply, or gives the College reasonable suspicion to believe the worker's behavior does not comply, with pertinent Chemeketa Community College policy(ies), including but not limited to providing a respectful workplace, a harassment free workplace, and a drug and alcohol free workplace, or the activity is deemed hazardous to members of a user group, the public, or College facilities.

Chemeketa Community College is a college campus; however, there are a large number of minors on College property. Contractors are responsible and shall be held liable for any misconduct of its employees and/or subcontractors.

37. OWNERSHIP OF WORK PRODUCT

All Work Product created by Contractor pursuant to this Contract, including derivative works and compilations, and whether or not such Work Product is considered a "work made for hire" or an employment to invent, shall be the exclusive property of the Owner. The College and Contractor agree that such original works of authorship are "work made for hire" of which the College is the author within the meaning of the United States Copyright Act. If for any reason the original Work Product created pursuant to this Contract is not "work made for hire," Contractor hereby irrevocably assigns to the College any and all of its rights, title, and interest in all original Work Product created pursuant to this Contract, whether arising from copyright, patent, trademark, trade secret, or any other state or federal intellectual property law or doctrine. Upon the College's reasonable request, Contractor shall execute such further documents and instruments necessary to fully vest such rights in the College. Contractor forever waives any and all rights relating to original Work Product created pursuant to this Contract, including without limitation, any and all rights arising under 17 USC §106A or any other rights of identification of authorship or rights of approval, restriction or limitation on use or subsequent modifications.

Chemeketa Community College prohibits unlawful discrimination based on race, color, religion, national origin, sex, marital status, disability, protected veteran status, age, gender, gender identity, sexual orientation, pregnancy, whistleblowing, genetic information, domestic abuse victim, or any other status protected by federal, state, or local law in any area, activity or operation of the College. The College also prohibits retaliation against an individual for engaging in activity protected under this policy, and interfering with rights or privileges granted under federal, state or local laws.

Under College policies, equal opportunity for employment, admission, and participation in the College's programs, services, and activities will be extended to all persons, and the College will promote equal opportunity and treatment through application of its policies and other College efforts designed for that purpose.

Persons having questions or concerns about Title IX, which includes gender based discrimination, sexual harassment, sexual violence, interpersonal violence, and stalking, contact the Title IX coordinator at 503.365.4723, 4000 Lancaster Dr. NE, Salem, OR 97305, or http://go.chemeketa.edu/titleix. Individuals may also contact the U.S. Department of Education, Office for Civil Rights (OCR), 810 3rd Avenue #750, Seattle, WA 98104, 206.607.1600.
Equal Employment Opportunity or Affirmative Action should contact the Affirmative Action Officer at 503.399.2537, 4000 Lancaster Dr NE, Salem OR 97305.